

24STCV34036 24STCV34036

County: los-angeles

Division: Civil Law and Motion

Department: 517

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Case Number: 24STCV34036 Hearing Date: July 22, 2026 Dept: 517

The Court is sustaining with leave to amend Defendant's demurrer to the claim for fraudulent inducement-concealment in Plaintiffs' First Amended Complaint that was belatedly filed on March 9, 2026. The basis for the Court's ruling is that the fraud claim is barred under the three-year statute of limitations for fraud claims. Plaintiffs have failed to plead within the delayed discovery rule that can fend off accrual of fraud claims. The Court is declining to reach the other grounds on which Defendant demurred to the fraud claim. Defendant's motion to strike is denied as moot in light of the ruling on the demurrer. The Court observes that the Plaintiffs refiled the First Amended Complaint on July 15, 2026. The Court is not sure why the Plaintiffs did that. The refiling touches upon the order to show cause regarding sanctions against Plaintiffs' counsel that is on calendar. The Court will address the order to show cause in light of the declaration of Plaintiffs' counsel regarding the failure of the Plaintiffs to file the First Amended Complaint on time.